*Number* 11 *of* 1976

# FAMILY LAW (MAINTENANCE OF SPOUSES AND CHILDREN) ACT 1976

**REVISED**

**Updated to 18 January 2016**

This Revised Act is an administrative consolidation of the *Family Law (Maintenance of Spouses and Children) Act 1976*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *International Protection Act 2015* (66/2015), enacted 30 December 2015, and all statutory instruments up to and including *Children and Family Relationships Act 2015 (Commencement of Certain Provisions) Order 2016* (S.I. No. 12 of 2016), made 12 January 2016, were considered in the preparation of this Revised Act.

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*Number* 11 *of* 1976

# FAMILY LAW (MAINTENANCE OF SPOUSES AND CHILDREN) ACT 1976

**REVISED**

**Updated to 18 January 2016**

AN ACT TO MAKE PROVISION FOR PERIODICAL PAYMENTS BY A SPOUSE FOR THE SUPPORT OF THE OTHER SPOUSE AND ANY DEPENDENT CHILDREN OF THE FAMILY OF THE SPOUSES IN CERTAIN CASES OF FAILURE BY THE SPOUSE TO PROVIDE REASONABLE MAINTENANCE, TO ENABLE PAYMENTS TO BE MADE BY AN EMPLOYER, BY DEDUCTIONS FROM AN EMPLOYEE'S EARNINGS, TO A PERSON ENTITLED UNDER CERTAIN COURT ORDERS TO PERIODIC PAYMENTS FOR MAINTENANCE FROM THE EMPLOYEE, TO PROVIDE FOR OTHER MATTERS CONNECTED WITH THE MATTERS AFORESAID AND TO AMEND IN OTHER RESPECTS THE LAW RELATING TO PARENTS AND CHILDREN. [6*th April*, 1976]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

## PART I

### Preliminary and General

Short title.

**1.**—This Act may be cited as the Family Law (Maintenance of Spouses and Children) Act, 1976.

Commencement.

**2.**—This Act shall come into operation on the day that is one month after the date of its passing.

Interpretation.

**3.**—(1) In this Act, save where the context otherwise requires—

**[**'Act of 2010' means the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;**]**

**[**'allowance' means deserted wife's allowance under section 195, lone parent's allowance under section 198B or supplementary welfare allowance under section 200 of the Social Welfare (Consolidation) Act, 1981;**]**

"antecedent order" means—

(*a*) a maintenance order,

(*b*) a variation order,

(*c*) an interim order,

(*a*) if such child has died before the making of such order, the funeral expenses, as measured by the Justice, of such child to an amount not exceeding two hundred pounds, or

6.—(1) Upon an application under this section in relation to an illigitimate child under the age of sixteen years in respect of whom a weekly sum is then payable under an affiliation order or in relation to an illigitimate child of the age of sixteen years in respect of whom a weekly sum was payable under an affiliation order imediately before he attained that age, a Justice of the District Court may order the putative father of such child or the personal representative of such putative father to pay such sum not exceeding two hundred pounds as the Justice shall fix for the purpose of apprenticing such child to a trade.